

**Court No. - 39**

**Case :-** WRIT - C No. - 27427 of 2018

**Petitioner :-** Uma Shankar

**Respondent :-** State Of U P And 3 Others

**Counsel for Petitioner :-** Dhirendra Kumar Pal

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Jayant Banerji,J.**

Case called out. None appears for the petitioner

Learned counsel for the respondents is present.

Put up as fresh on 21.8.2018 before the appropriate Bench.

The matter shall not be treated as part-heard or tied up with this Bench.

**Order Date :-** 18.8.2018

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**Counsel for Petitioner :-** Dhirendra Kumar Pal

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Abhinava Upadhya,J.**

**Hon'ble Rajiv Gupta,J.**

Heard Sri Dhirendra Kumar Pal, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent nos. 2 and 3.

The petitioner has come up to this Court challenging the recovery certificate dated 21.5.2018 for a sum of Rs. 2,01,680/- plus interest and other charges.

The said recovery certificate is stated to be pending electricity dues.

Learned counsel for the petitioner submits that no bill has been given to the petitioner and as to how the aforesaid amount has been arrived at.

The petitioner has installed a tube-well and to run the same, the electricity connection was obtained by the petitioner, for which payment has not been paid which resulted in issuance of recovery certificate.

In case the petitioner disputes the amount, he can approach the Executive Engineer for redressal of his grievances.

The writ petition is disposed of with a direction that in case the petitioner makes a representation before the Executive Engineer, who may consider the same and pass appropriate orders in accordance with law as far as possible within a period of one month from the date of production of a certified copy of this order. In case the petitioner accepts the liability and is ready to pay the amount, the Executive Engineer may consider the petitioner's claim under Section 6.14 of the Electricity Supply Code, 2005.

For a period of one month, no coercive action shall be taken against the petitioners.

**Order Date :-** 21.8.2018

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**(Rajiv Gupta,J.)    (Abhinava Upadhya,J.)**